

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: May 7, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Ace Property and Casualty Insurance Company vs. Northwood Villas Maintenance Corporation 2024-01439117	Motion for Summary Judgment and/or Adjudication <i>Continued to 6/25/26. See minute order dated 5/4/26.</i>
2	Coconut Funding Corp. vs. Pearlman 2025-01479665	1. Motion for Preliminary Injunction 2. Case Management Conference <i>Continued to 6/18/26. See minute order dated 5/5/26.</i>
3	Haynes vs. Hyundai Motor America 2025-01464729	Demurrer to Complaint Defendant Hyundai Motor America's (defendant) demurrer to complaint is OVERRULED . Defendant shall answer the complaint within 10 days. The complaint states facts sufficient to constitute the fifth cause of action for fraudulent concealment–inducement, with the requisite specificity. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40-41, 43-44 [elements, specificity; duty to disclose, generally]; <i>Gilead Tenofovir Cases</i> (2024) 98 Cal.App.5th 911, 949 [“a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects”]; <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844; see also Compl. ¶¶ 4, 6-7, 10, 47-59.) The economic loss rule does not bar a claim for fraudulent concealment. (<i>Rattagan v. Uber Technologies, supra</i> , 17 Cal.5th at p. 38.) The court declines to consider and has not considered plaintiff Barney Whitford Haynes's (plaintiff) opposition to the demurrer. The opposition is untimely, and there is no proof of service of the opposition. (See Code Civ. Proc., § 1005, subd. (b).) Defense counsel's reply declaration confirms plaintiff has not served the opposition to date. (See Knighton Reply Decl. ¶¶ 4-5.) Motion to Strike Portions of Complaint Defendant's motion to strike portions of complaint is DENIED .

		The prayer for punitive damages is adequately supported by the fifth cause of action for fraudulent concealment–inducement. (<i>Stevens v. Superior Court (St. Francis Med. Ctr.)</i> (1986) 180 Cal.App.3d 605, 610 [a properly pled fraud claim will itself support recovery of punitive damages].) The court declines to consider and has not considered plaintiff’s opposition to the motion to strike for the same reasons discussed above with respect to his opposition to the demurrer. (See Code Civ. Proc., § 1005, subd. (b); Knighton Reply Decl. ¶¶ 4-5.) Defendant shall give notice. If parties/counsel wish to give argument, both hearings will be continued to July 9, 2026 at 1:30 p.m. in Dept. C44.
4	Khuu vs. Fairmont North Tustin 2025-01515709	Demurrer to Complaint <i>Continued to 6/4/26. See minute order dated 4/28/26.</i>
5	Maaranu vs. Ponder 2025-01505635	1. Motion to Compel Arbitration 2. Petition to Compel Arbitration <i>Continued to 6/18/26. See minute order dated 5/4/26.</i>
6	Power vs. Deerfield Apartments, LLC 2025-01473139	Motion to Compel Arbitration Defendants Deerfield Apartments, LLC (Deerfield) and Irvine Management Company’s (IMC) motion to compel arbitration is GRANTED. (See 9 U.S.C. § 2 [Federal Arbitration Act (FAA)]; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 (<i>Victrola</i>) [parties may incorporate the FAA]; <i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 681 [burden]; <i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 [burden].) Plaintiff Jennifer Power is ORDERED to arbitrate her claims against defendants in accordance with the subject arbitration agreement. (Clem Decl. at Ex. 1 [lease at arbitration (arb.) addendum].) This action is hereby STAYED pending completion of arbitration or further order of the court. (See 9 U.S.C. § 3.)

	<u>Existence of arbitration agreement.</u> Defendants have met their burden to demonstrate the existence of an agreement to arbitrate the controversy. (See Clem Decl. ¶ 2, Ex. 1 [lease at arb. addendum]; <i>Arthur Andersen LLP v. Carlisle</i> (2009) 129 S.Ct. 1896, 1902-1903 [under FAA, state contract law governs the validity, revocability, and enforceability of an arbitration agreement, including the question of whether an arbitration agreement may be enforced by a nonparty]; <i>Banner Entertainment, Inc. v. Superior Court</i> (1998) 62 Cal.App.4th 348, 357 [the FAA does not apply until the existence of an enforceable arbitration agreement is established under state law principles]; <i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51-52 [three-step burden shifting process]; <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-832, 837 [if opposing party fails to meet her second-step burden, the burden shifting process stops there]; see also Clem at Ex. 1 [IMC was Deerfield “duly authorized agent,” see lease at p. 1, 6 & arb. addendum, pp. 1-2]; Compl. ¶¶ 6, 13-14, 16-17, & the second ¶ 7 [IMC sued for acts/omissions as Deerfield’s agent]; <i>Dryer v. Los Angeles Rams</i> (1985) 40 Cal.3d 406, 409-410 [agency exception]; <i>Thomas v. Westlake</i> (2012) 204 Cal.App.4th 605, 614-615 [same].) <u>Civ. Code, § 1953, subd. (a)(4).</u> The court has considered plaintiff’s challenge based on Code of Civil Procedure section 1953, subdivision (a)(4) (section 1953(a)(4)) to the extent it applies specifically to the delegation clause, as the delegation clause, standing on its own, modifies plaintiff’s procedural rights in litigation. (See Clem Decl. at Ex. 1 [arb. addendum § 1].) Plaintiff’s reliance on section 1953(a)(4), however, fails. The FAA applies here pursuant to the express terms of the arbitration agreement. (Clem Decl. at Ex. 1 [arb. addendum § 1, stating that the lease and arbitration addendum “shall be governed by ... the Federal Arbitration Act, 9 U.S.C. Sections 1-16, notwithstanding any other choice of law provision”]; <i>Victrola, supra</i>, 6 Cal.App.5th at pp. 345-346 [where arbitration agreement states its enforcement is “governed by the [FAA],” both the procedural and substantive provisions of FAA apply]; <i>Peleg v. Neiman Marcus Group, Inc.</i> (2012) 204 Cal.App.4th 1425, 1445-1446 [same].) “[T]he FAA preempts a state rule that discriminates against arbitration by discouraging or prohibiting the formation of an arbitration agreement.” (<i>Chamber of Commerce of the United States of America v. Bonta</i> (9th Cir. 2023) 62 F.4th 473, 483, 486 (<i>Chamber of Commerce</i>)). “[A] state rule discriminates against arbitration even if it does not expressly refer to arbitration, but
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instead targets its defining characteristics.” (*Id.*, at p. 486.) This includes “a rule that prohibits an agreement ... that waives the right to a jury trial...” (*Id.* at p. 483.) Further, even if a state law is purportedly “generally applicable,” the FAA preempts the law if it “interferes with fundamental attributes of arbitration,” such as a categorical rule of unconscionability declaring a particular type of agreement against public policy. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 331-334 (*Concepcion*); *Chamber of Commerce*, at p. 483.)

This is what we have here. Section 1953(a)(4) prohibits and renders “void” an agreement modifying or waiving a tenant’s procedural rights in litigation, including the right to a jury trial. (Civ. Code, § 1953, subd. (a)(4); *Jaramillo v. JH Real Estate Partners, Inc.* (2003) 111 Cal.App.4th 394, 403-404 [section 1953(a)(4) establishes the general rule that a tenant cannot validly agree to binding arbitration in a residential lease agreement; “[i]nherent in an arbitration agreement is a waiver of any right to jury trial”].) It is therefore preempted by the FAA. (See *Chamber of Commerce*, *supra*, 62 F.4th at pp. 483, 486; *Concepcion*, *supra*, 563 U.S. at pp. 331-334.)

Delegation clause. The arbitration agreement includes a clear and unmistakable delegation clause. (See Clem Decl. at Ex. 1 [arb. addendum § 1, “The arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable.”]; *Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 892 [delegation clause prerequisites]; *Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1559-1560 [delegation clause that provided “ ‘[t]he arbitrator has exclusive authority to resolve any dispute relating to the interpretation, applicability, or enforceability of this binding arbitration agreement’ ” was clear and unmistakable]; *Momot v. Mastro* (9th Cir. 2011) 652 F.3d 982, 988 [language delegating authority to arbitrator to determine “ ‘the validity or application of any of the provisions of’ ” the arbitration clause was a clear and unmistakable agreement to arbitrate the question of arbitrability].)

Plaintiff has not raised any defenses specific to the delegation clause. (See *Aanderud v. Superior Court*, *supra*, 3 Cal.App.5th at p. 895 [burden]; *Malone v. Superior Court*, *supra*, 226 Cal.App.4th at pp. 1559-1560 [contentions that the entire agreement is unconscionable are not sufficient to challenge the delegation clause itself; “any claim of unconscionability must be specific to the

		delegation clause”]; accord, <i>Nickson v. Shemran, Inc.</i> (2023) 90 Cal.App.5th 121, 132; see also Opp., in passim.) Therefore, the court must delegate the remaining issues for the arbitrator to decide, including plaintiff’s remaining challenges to enforcement based on the scope of the arbitration agreement or the “arbitrability” of her claims (see Opp. at pp. 5-6), unconscionability (<i>id.</i> at pp. 7-8), and waiver (<i>id.</i> at pp. 8-9). <i>CMC set 5/7/26 is ordered vacated.</i> <i>ADR Review Hearing set 2/5/27 at 8:30 a.m. in Dept. C44.</i> Defendants shall give notice. If parties/counsel wish to give argument, both hearings will be continued to July 9, 2026 at 1:30 p.m. in Dept. C44.
7	Qadri vs. Direct Express, Inc 2025-01523275	Motion to Dismiss Defendant Comerica Bank, Inc.’s Motion to Dismiss is GRANTED. On November 3, 2025, the Plaintiff in this action—nominally a woman named Karin Z. Qadri (“Qadri”)—filed this pro se action against Defendant Comerica Bank (“Comerica”) and Defendant Direct Express, Inc. Although Plaintiff’s handwritten complaint identified four causes of action, the only actual conduct alleged is Comerica’s alleged failure to reactivate Plaintiff’s card after she reported it stolen. (Compl. at p. 3.) Comerica determined that Qadri is, at best, only the nominal plaintiff in this action. In fact, the true “Plaintiff” in this action—at least for purposes of Code of Civil Procedure section 391—is an individual named John Luckett (“Luckett”), who has been deemed a vexatious litigant. (Note: I confirmed John Luckett’s name appears on the vexatious litigant list) Courts may designate certain persons as vexatious litigants and enter a prefiling order “enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.” (Code. Civ. Proc. § 391.7(a).) “The clerk may not file any litigation presented by a vexatious litigant subject

		to a prefiling order unless the vexatious litigant first obtains an order from the presiding justice or presiding judge permitting the filing.” (Code Civ. Proc. § 391.7(c).) For purposes of the vexatious litigant statute, the “Plaintiff” is “the person who commences, institutes or maintains a litigation or causes it to be commenced, instituted or maintained.” (Code Civ. Proc. § 391(d), emphasis added.) It is well established that a vexatious litigant cannot circumvent a prefiling order by acting through a third party or litigating under another person’s name. In <i>In re Shieh</i> (1993) 17 Cal.App.4th 1154, the Court of Appeal imposed a prefiling order on a vexatious litigant that extended beyond his in propria persona activities to include litigation filed through counsel. (Id. at pp. 1167–1168.) The court found it was “apparent from syntax, grammar, style and tone that ... many—if not most—of the pleadings and other documents filed by [the vexatious litigant] or on his behalf have been written by the same person.” (Id. at p. 1167.) Because the attorneys who “represented” the vexatious litigant “serve[d] as mere puppets,” the court concluded that “a prefiling order limited to [his] in propria persona activities would be wholly ineffective as a means of curbing his out-of-control behavior.” (Id.) Just as the vexatious litigant in <i>Shieh</i>, Luckett has written, served and filed most—if not all—of the Plaintiff’s pleadings in this matter (including Plaintiff’s opposition to this motion). (Averett Decl., ¶¶ 4, 18.) Luckett’s phone number and email address appear on the caption of pleadings purportedly filed by Qadri. (Id., ¶¶ 6–7, 18(a).) Counsel’s attempts to interact with Qadri in the course of investigating this matter made it clear that Qadri has, at best, only a limited understanding of these proceedings, while Luckett is directing and coaching Qadri. (Id. ¶¶ 3–18.) Thus, for all intents and purposes, Luckett caused this action to commence and is maintaining it. In opposition, the “Plaintiff” states she has never been declared a vexatious litigant, that she is elderly, and Defendant’s counsel could “cause me to hart attack and kill me from unwanted stress and harassment.” Plaintiff does not address the merits of the motion that Luckett filed and is maintaining this action, and there is no sworn testimony contradicting any of the evidence detailed in the Averette Declaration.
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		Accordingly, because Luckett has not obtained a prefilng order in this case, the motion is GRANTED and the case is dismissed. (Code Civ. Proc. § 391.7(c).) Clerk to give notice. If parties/counsel wish to give argument, the hearing will be continued to July 16, 2026 at 1:30 p.m. in Dept. C44. Plaintiff is to appear in person, pursuant to the minute order dated 11/20/25 (ROA 35).
8	Wei vs. Sarkis 2025-01509812	Demurrer to Complaint Defendants Anthony M. Sarkis and Shivangini Chudhary's demurrer to the complaint of Yilu Amanda Wei is OVERRULED without prejudice. There is no proof of service in the court's file that indicates that defendants served the notice of demurrer and supporting documents on the Ms. Wei. Further, there is no indication that defendant met their statutory meet and confer obligations under Ca. Civ. Pro. Section 430.41. Clerk to give notice. If parties/counsel wish to give argument, the hearing will be continued to July 16, 2026 at 1:30 p.m. in Dept. C44.